

Express View: A higher bar

In just over three months, the Supreme Court has **reiterated** for the second time the need for investigative agencies to show **restraint** when invoking the charge of **abetment** of suicide. This week, a bench of Justices Abhay S Oka and KV Viswanathan said that **Section 306** of the Indian Penal Code **is invoked** “casually.”

The SC **set aside** criminal **proceedings** against a bank manager **accused of abetting** the suicide of a man who **allegedly** took his own life after he was unable to repay his bank loans. In October 2024, another **bench** of the SC cleared the management of a company which was facing criminal charges after a 60-year old employee died by suicide allegedly after it was suggested that he voluntarily retire.

These cases **highlight** a familiar pattern — where the **prosecution** frames a case primarily to **assuage** the **sentiments** of the **distraught** family of **the deceased**, and does not follow the higher **threshold mandated** by law.

Section 306 of the IPC and now, 108 of the Bharatiya Nyaya Sanhita, **carries** either a jail term of up to 10 years or a fine or both. It is a **non-bailable** offence where the police can arrest without a **warrant**. **The abetment law** involving suicide **has** been **strengthened** to protect women, reversing the burden of proof against the husband for the first seven years of marriage. While this change was **arguably** needed for tackling a societal **ill** like **dowry** death, the law has all too often **lent** itself to misuse.

The SC has **underlined** that a charge of abetment has to be invoked only when the action is **proximate** and intended to cause self-harm **resulting in** death. Words said in anger, **haste** or casually cannot be **termed** abetment. It is not uncommon, however, for the police to invoke the provision when faced with public **scrutiny** in cases of **homicide** or suicide. The **cautionary note struck** by the court is a reminder that the **offence** of abetment of suicide **cannot** be used as a substitute in cases where the **requirements** and ingredients for murder **are** not met.

According to the National Crime Records Bureau’s annual Crime in India Report, the **conviction rate** in abetment of suicide (Section 306 IPC) cases **was** 17.5 per cent in 2022, a much lower rate when compared to other **cognisable offences** where the conviction rate is 54.2 per cent.

A lower conviction rate **implies** that cases might be **eventually** dropped, but the **shadow** of **criminality** has several consequences, from **confiscation** of passports to legal costs. The SC’s **strictures** must also extend to judges who **take cognisance of** the offence — they must not do so in a **rote** or mechanical manner.

[Practice Exercise]

- Red/blue coloring of words in the sentence indicates subject verb relationship; where ‘red’ denotes ‘subject’ and ‘blue’ denotes ‘verb’

Vocabulary

1. **Bar** (noun) – Barrier, obstruction, restriction, hurdle, impediment रोक, बाधा
2. **Reiterate** (verb) – Repeat, restate, echo, reemphasize, iterate दोहराना
3. **Restraint** (noun) – Control, moderation, limitation, inhibition, self-discipline संयम
4. **Abetment** (noun) – Assistance, instigation, encouragement, provocation, aid उकसाना, सहायता
5. **Invoke** (verb) – Call upon, appeal to, summon, refer to, cite आह्वान करना
6. **Set aside** (phrasal verb) – Cancel, annul, dismiss, overturn, reserve रद्द करना, अलग रखना
7. **Proceeding** (noun) – Legal action, trial, case, process, litigation कार्रवाई
8. **Accuse** (of) (verb) – Blame, charge, allege, indict, prosecute आरोप लगाना
9. **Abet** (verb) – Aid, assist, instigate, provoke, support सहायता देना, उकसाना
10. **Allegedly** (adverb) – Supposedly, reportedly, purportedly, claimedly, ostensibly कथित रूप से
11. **Bench** (noun) – Panel, tribunal, judiciary, court, adjudicators न्यायमूर्ति मंडल
12. **Highlight** (verb) – Emphasize, underline, stress, accentuate, showcase ज़ोर देना
13. **Prosecution** (noun) – Legal proceedings, trial, indictment, accusation, litigation अभियोजन
14. **Assuage** (verb) – Alleviate, mitigate, soothe, pacify, mollify शांत करना, कम करना
15. **Sentiment** (noun) – Emotion, feeling, opinion, attitude, perception भावना, विचार
16. **Distraught** (adjective) – Agitated, distressed, upset, anxious, worried व्याकुल
17. **The deceased** (noun) – The departed, the late, the dead, the defunct, the expired मृत व्यक्ति
18. **Threshold** (noun) – Limit, boundary, brink, verge, level सीमा
19. **Mandate** (verb) – Command, order, authorize, decree, require आदेश देना
20. **Non-bailable** (adjective) – Not eligible for bail; requiring mandatory custody जमानत योग्य नहीं
21. **Warrant** (noun) – Authorization, permit, order, summons, mandate वारंट
22. **Strengthen** (verb) – Reinforce, fortify, bolster, support, enhance मजबूत करना

23. **Arguably** (adverb) – Possibly, conceivably, debatably, plausibly, potentially तर्कसंगत रूप से
24. **Ill** (noun) – Sickness, ailment, malady, affliction, harm बीमारी, हानि
25. **Dowry** (noun) – Bride price, marriage settlement, endowment, dower, gift दहेज
26. **Lent** (verb) – Provided, offered, given, extended, granted प्रदान करना
27. **Underline** (verb) – Emphasize, highlight, accentuate, stress, underscore ज़ोर देना
28. **Proximate** (adjective) – Nearby, immediate, close, adjacent, near निकटतम
29. **Result in** (phrasal verb) – Lead to, cause, bring about, produce, culminate in परिणामस्वरूप होना
30. **Haste** (adjective) – Urgency, quickness, speed, rashness, impetuosity जल्दबाजी
31. **Term** (verb) – Name, designate, label, refer to, describe नाम देना, परिभाषित करना
32. **Scrutiny** (noun) – Examination, inspection, investigation, analysis, review जाँच-पड़ताल
33. **Homicide** (noun) – Murder, killing, manslaughter, assassination, slaughter हत्या
34. **Cautionary** (adjective) – Warning, advisory, preventative, alerting, protective सावधान करने वाला
35. **Strike a note** (phrase) – Make an impression, emphasize, convey, highlight, project ध्यान आकर्षित करना
36. **Conviction rate** (noun) – The percentage of guilty verdicts in a given set of cases दोषसिद्धि दर
37. **Cognisable offence** (noun) – Recognizable crime, punishable act, actionable offence, serious crime, chargeable crime गंभीर अपराध
38. **Imply** (verb) – Suggest, indicate, infer, hint, denote संकेत करना
39. **Eventually** (adverb) – Finally, ultimately, in the end, at last, after a while आखिरकार
40. **Shadow** (noun) – Shade, gloom, specter, obscurity, silhouette साया
41. **Criminality** (noun) – Illegality, wrongdoing, crime, misconduct, offense अपराधता
42. **Confiscation** (noun) – Seizure, appropriation, forfeiture, requisition, expropriation जब्ती
43. **Stricture** (noun) – Restriction, limitation, criticism, constraint, prohibition निंदा, प्रतिबंध

44. **Take cognisance of** (phrase) – Notice, acknowledge, consider, recognize, regard
ध्यान देना, संज्ञान लेना

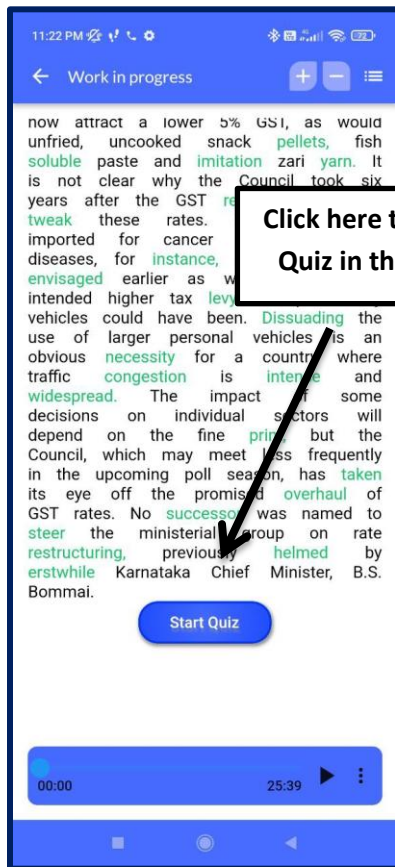
45. **Rote** (adjective) – Mechanical, repetitive, memorized, unthinking, habitual रटकर

@mocks_wallah

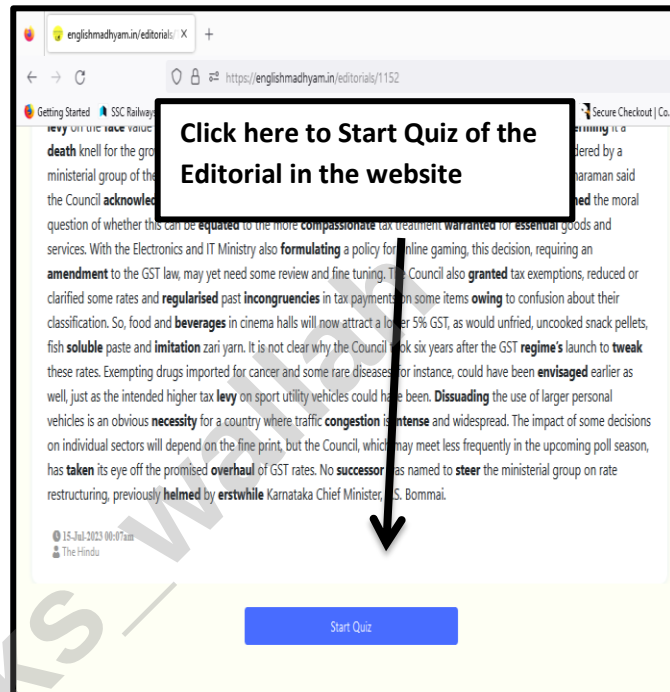
Summary of the Editorial

1. **Supreme Court's Reiteration:** The Supreme Court emphasized the need for restraint in invoking Section 306 (abetment of suicide) of the IPC for the second time in three months.
2. **Recent Case:** This week, the SC dismissed criminal proceedings against a bank manager accused of abetting a debtor's suicide.
3. **October 2024 Case:** Earlier, the SC cleared a company's management of charges after an employee died by suicide following a suggestion to retire voluntarily.
4. **Pattern of Misuse:** Prosecution often files cases to console grieving families, disregarding the legal threshold for abetment charges.
5. **Section 306 Details:** This provision allows imprisonment up to 10 years, is non-bailable, and lets police arrest without a warrant.
6. **Strengthened for Women:** The law, designed to address dowry-related suicides, reverses the burden of proof against husbands during the first seven years of marriage.
7. **Potential for Misuse:** Despite its intent, the law has been misused in cases not meeting the legal criteria for abetment.
8. **Proximity and Intent:** The SC clarified that abetment applies only when the accused's actions are proximate and intended to cause self-harm leading to death.
9. **Casual Remarks Excluded:** Words said in anger or haste cannot be classified as abetment, the SC emphasized.
10. **Police Overreach:** Police often invoke Section 306 under public pressure in suicide or homicide cases where murder charges cannot be established.
11. **Caution Against Misuse:** The SC warned against substituting abetment charges for murder when legal criteria are unmet.
12. **Low Conviction Rates:** The conviction rate for abetment of suicide was only 17.5% in 2022, compared to 54.2% for other cognisable offences.
13. **Consequences of Accusations:** False or unwarranted charges lead to serious consequences like passport confiscation and legal costs.
14. **Judicial Responsibility:** The SC urged judges to avoid taking cognisance of such cases mechanically or without due scrutiny.
15. **Need for Precision:** The editorial underscores the importance of adhering to legal thresholds to prevent misuse and ensure justice.

Practice Exercise: SSC Pattern Based



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